

Inserted by Beth Melofichek, precinct 9

From: Shevawn Hardesty

Sent: Monday, March 30, 2026 11:13 AM

To: Rachel Zsemlery; Stephen Revilak; Kin Lau; Shaina Korman-Houston; Vincent Baudoin

Cc: Jennifer Joslyn-Siemiatkoski; Claire Ricker; Joanne Cullinane
Subject: SUPPORT OF UPHOLDING THE LAW AS WRITTEN

I am concerned about the Board not complying with the laws as written. The laws/regulations were established after an extensive public process with expectation that they would be complied with.

I am writing in response and in support of the work being done by Joanne Cullinane, Larry Slotnick.

Best, Shevawn Hardesty

shevawn@comcast.net

32 Everett St. unit 1

From: Stefan Wolpert

Sent: Monday, January 12, 2026 2:56 PM

To: Claire Ricker

Cc: Sarah Wolpert

Subject: In regards to Site Plan Review Docket #3881 for 259 Broadway

Hello, please find comments and questions for the Arlington Redevelopment Board
From: Sarah and Stefan Wolpert, 5 Webster Street, diagonal and partially abutting 259 Broadway

Traffic Safety and Sight Lines (Palmer Street / Broadway)

1. This building is located on a corner lot where the existing dwelling and lawn currently provide critical sight lines for vehicles turning from Palmer Street onto Broadway. The proposed building appears to fully block these sight lines.
2. How has the Town evaluated vehicle sight lines for cars exiting Palmer Street onto Broadway, particularly given that Palmer Street is not perpendicular to Broadway?
3. Has a traffic safety or visibility study been conducted for this intersection?

Does the Town plan to:

4. Convert Palmer Street to one-way (northbound)?
5. Increase no-parking setbacks on Broadway near the intersection?
6. Without such measures, how will the Town ensure safety for cars, pedestrians, and cyclists at this intersection?

Building Height and Legal Basis

7. Please clarify the specific legal basis and computation under the Arlington Zoning Bylaw for permitting a five-story building at this location.

MBMF Broadway Setback Compliance

8. Please confirm whether the proposed building complies with all applicable MBMF Broadway setback requirements, including:
Minimum front yard setback: 15 feet (reduced to zero only if commercial space requirements are met)
Minimum side yard setback: 5 feet on each side
Minimum rear yard setback: 20 feet

Front Yard Setback Reduction to Zero Feet

9. Does the proposed building meet the requirement that at least 80% of the lot frontage be occupied by the building?

10. Please show this frontage calculation clearly on the drawings.

11. The application references 92% “Non-residential frontage for bonus,” but this does not appear consistent with the actual lot frontage shown.

Ground-Floor Commercial Requirement

12. Does commercial/retail use exceed 60% of the ground-floor square footage?

13. The application states 67.44% “Ground Floor Use for Bonus,” but the square footage of non-retail space is not clearly defined.

14. Please provide a clear breakdown of ground-floor square footage by use.

Affordable Housing Commitments

15. What binding legal agreements ensure that these units remain affordable long-term?

16. For how many years are affordability restrictions guaranteed, and under what enforcement mechanism?

Historic Context and Neighborhood Compatibility

17. The existing structure is included in the Arlington Historical Commission’s Historic Structure Inventory and is located two doors from a historic district.

18. How has the project been reviewed for compatibility with nearby historic resources?

19. What consultation, if any, has occurred with the Arlington Historical Commission?

Building Design and Massing

20. Does the proposed building satisfy Town design standards regarding blank or flat façades?

21. The side of the building facing 44 Palmer Street is extremely plain and flat and does not reflect the character of the surrounding historic neighborhood (see View 3 – Palmer Street, Looking South).

22. The fifth story facing Broadway appears boxy and industrial in character (see View 2 – Palmer Street, Looking North).

23. What design changes could be required to better integrate the fifth story with the neighborhood?

Fencing and Lighting

24. The proposed 6-foot fences are not shown in any rendered views. Please include them in additional visual materials.

25. Will nighttime lighting spillover be evaluated prior to building permit sign-off?
Nearby projects have not complied with approved lighting plans, resulting in direct bulb glare onto adjacent properties.

26. How will compliance with the lighting ordinance be enforced?

Parking and Street Congestion

27. Fourteen residential units are likely to generate parking demand well beyond the proposed 5–6 parking spaces.

28. Is the Town prepared to issue overnight residential parking permits for new tenants?

29. Palmer and Webster Streets currently have no parking time limits, unlike Broadway.

30. How will increased demand from retail customers and 14–28+ residents be managed?

31. Palmer Street effectively functions as a one-lane road when cars are parked.

32. What parking or curb-use changes are planned on Broadway and Palmer Streets to accommodate the new retail spaces?

Viability of Proposed Commercial Spaces

33. One proposed commercial unit is listed as 337 NSF, which appears too small for most retail uses beyond a small office.

34. What types of commercial businesses are realistically targeted for the 337 NSF and 883 NSF spaces?

35. How do these sizes compare with existing Arlington commercial space inventory?

36. How many units of similar size are currently vacant versus leased?

37. If the 337 NSF space is a significant outlier, how is it being evaluated as a bona fide commercial use, rather than a perfunctory space included solely to obtain zoning bonuses such as zero-foot setbacks or additional height?

Inserted by Beth Melofichek, precinct 9

From: Judith Miller

Sent: Monday, March 30, 2026 1:45 PM

To: Rachel Zsembery; Stephen Revilak; Kin Lau; Shaina Korman-Houston; Vincent Baudoin

Cc: Claire Ricker; Jennifer Joslyn-Siemiatkoski

Subject: Article 53

To whom it may concern:

I support Article 53 - uphold the bylaws as written. What could be more clear than that?

Judith A. Miller

32 Pine Ridge Road

Arlington, MA 02476

Inserted by Beth Melofichek, precinct 9, at the request of Gerry Leonard

Dear Precinct 9 Town Meeting Members and all Members who might read this:

I write as a resident of Precinct 9 to support warrant article 53, which would clarify the rules for developers who want to build tall apartment buildings in the neighborhoods covered by the MBTA Communities Act. The rule immediately in question—the “commercial bonus”—allows developers to build as high as 6 stories (on Mass Ave) and 5 stories (on Broadway) as long as they provide substantial commercial space on the ground floor. This is a laudable rule, which can serve both housing and commercial goals well, as long as it’s applied properly. But the Arlington Redevelopment Board has, in my judgment, been bending the rule unreasonably in its effort to approve as much new housing as possible. I think the ARB is acting as it thinks best in pursuit of needed housing, but it has sometimes failed to respect the rules as they are written (as well as the good reasons for those rules). Article 53 clarifies the very important commercial bonus rule in a way that accords with Town Meeting’s intended policies of substantial housing growth connected to commercial spaces of an attractive, rentable size.

The commercial bonus rule in section 5.8.4.E.1 of the Zoning Bylaw says that a developer is entitled to add an extra, rent-producing floor to their building if they provide ground-floor commercial space that meets a few requirements. One of those is that the space be at least 60% of the “ground floor area” of the building. Obviously, this rule is meant to permit unusually tall buildings for this area, not by right but in return for meaningful commercial development. The extra floor has to be earned.

A majority of the ARB, however, has interpreted the rule to permit developers to reduce the size of the enclosed ground floors of those buildings as much as they want, thus reducing the required commercial space below any realistic number, while still giving the developer the bonus floor up top. Why would a developer want to shrink the space so much? Because it allows them to provide other amenities, primarily off-street parking, in the space that Town Meeting wanted to go to a retail business or a coffee shop (etc.)--while still getting the bonus floor! For example, if the footprint of the proposed building were 3000 square feet, then normally the rule would require at least 1800 s.f. of commercial space on the ground floor to qualify for an extra story up top. But if the developer wanted to provide 1500 s.f. of covered—but not enclosed—parking on the ground floor, the required commercial space would shrink to a hard-to-rent 900 s.f. under the ARB’s interpretation. And that interpretation would entitle the developer to the extra, full-sized story at the top. The ARB would have no discretion to block the proposal.

The common sense of the commercial space rule is that, however large a building a lot can support, the developer should have to dedicate at least 60% of that space on the ground floor to commercial uses if it wants a specially tall building for that area. Article 53 does an admirable job of explaining, in enforceable language, the policy that the original rule always embodied. Article 53 makes no new rule, in my opinion, but simply clarifies that the ARB has strayed from Town Meeting’s measured policy and restores the understanding that was embedded in the rule to begin with.

I've tried to stick to the heart of the problem in this message rather than complicating it with many important details, but I am happy to talk more about this issue with any TM Member who is interested to learn more. Thank you for reading and for giving your time to service of the town.

Sincerely,

Gerry Leonard
44 Palmer St
Precinct 9